

STATE OF NEW YORK

792--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. ROSENTHAL, STERN, SEAWRIGHT, REYES, BERGER -- read once and referred to the Committee on Aging -- recommitted to the Committee on Aging in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property tax law, in relation to excluding veterans' benefits and workers' compensation benefits from the definition of income for purposes of the senior citizen rent increase exemptions (SCRIE) program and the disability rent increase exemption (DRIE)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The opening paragraph of clause (B) of subparagraph (ii) of
2 paragraph c of subdivision 1 of section 467-b of the real property tax
3 law, as amended by chapter 276 of the laws of 2023, is amended to read
4 as follows:
5 provided, however, that income may be calculated as the income from
6 all sources after deduction of all income and social security taxes and
7 medicare premiums and includes social security and retirement benefits,
8 supplemental security income and additional state payments, public
9 assistance benefits, interest, dividends, net rental income, salary or
10 earnings, and net income from self-employment, but shall not include
11 gifts or inheritances, payments made to individuals because of their
12 status as victims of Nazi persecution, as defined in federal P.L.
13 103-286, or increases in benefits accorded pursuant to the social secu-
14 rity act or a public or private pension paid to any member of the house-
15 hold which increase, in any given year, does not exceed the consumer
16 price index (all items United States city average) for such year which
17 take effect after the date of eligibility of head of the household
18 receiving benefits hereunder whether received by the head of the house-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 hold or any other member of the household, when the following conditions
2 are met:

3 § 2. The opening paragraph of clause (ii) of subparagraph 2 of para-
4 graph f of subdivision 1 of section 467-c of the real property tax law,
5 as amended by chapter 276 of the laws of 2023, is amended to read as
6 follows:

7 provided, however, that income may be calculated as the income
8 received by the eligible head of the household combined with the income
9 of all other members of the household from all sources after deduction
10 of all income and social security taxes and medicare premiums and
11 includes without limitation, social security and retirement benefits,
12 supplemental security income and additional state payments, public
13 assistance benefits, interest, dividends, net rental income, salary and
14 earnings, and net income from self employment, but shall not include
15 gifts or inheritances, payments made to individuals because of their
16 status as victims of Nazi persecution as defined in federal P.L.
17 103-286, nor increases in benefits accorded pursuant to the social secu-
18 rity act or a public or private pension paid to any member of the house-
19 hold which increase, in any given year, does not exceed the consumer
20 price index (all items United States city average) for such year which
21 take effect after the eligibility date of an eligible head of the house-
22 hold receiving benefits hereunder whether received by the eligible head
23 of the household or any other member of the household, when the follow-
24 ing conditions are met:

25 § 3. This act shall take effect immediately.